

## 24TRCV02998 24TRCV02998

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-06

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=SBA%2CP%2C08%2F06%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CP%2C08%2F06%2F2026)

Source SHA-256: b0b44c4f6ab47b49fc0189ca8590377e2f24dfb9b466d13b68a880d31627e244

Case Number: 24TRCV02998 Hearing Date: August 6, 2026 Dept: P

Motion for Summary Judgment and/or Summary Adjudication

Moving Party: Defendant County of Los Angeles

Responding Party: Plaintiff Keith Floria

### RULING

The court considered the moving papers, opposition, and reply. Los Angeles County's Motion for Summary Judgment or alternatively Summary Adjudication is GRANTED.

### PROCEDURAL BACKGROUND

On September 6, 2024, Keith Floria filed a complaint for General Negligence and Premises Liability against the County of Los Angeles. The premises liability cause of action includes counts for negligence, willful failure to warn, and dangerous condition of public property. Los Angeles County answered the complaint on November 21, 2024.

On May 11, 2026, Los Angeles County filed its motion for summary judgment or summary adjudication. Floria filed an opposition on July 16, 2026. Los Angeles County filed its reply on July 24, 2026.

### FACTUAL BACKGROUND

The Complaint alleges that on October 31, 2023, Plaintiff Keith Floria was riding a bicycle on a public street in the County of Los Angeles, when the bicycle struck an "unmarked/unpainted speed cushion," thereby causing Plaintiff to fall.

It is undisputed that the speed cushions were installed between October 20 and 27, 2023. (UMF 3, 4.) Once they were installed, they were marked with white reflective tabs that were affixed with asphalt glue. (UMF 5.) Those tabs were not removed until the cushions were painted. (Garcia Depo. 23:9 – 24:14.) In addition, the construction crew placed traffic barricades and cones around the speed cushions and removed those items after the cushions were painted. (UMF 7.)

County policy requires the placement of reflective tags and other signage at the time of placement of speed cushions. (Bowie Depo. 26:2-17.) The temporary signs and tabs remain in place until painting. (Id., 48:10-23.) Stephen Durham, a sign installer for the County, visited the area of the speed cushions in preparation for the installation of permanent signage on October 31, 2023. (Durham Depo. 9:2-10:14.) On that date barricades were present around the speed cushions, but they had not been painted yet. (Id. 11:8-12:16.) The speed cushions were observable to a person on the street. (Id., 23:10-24:10.) Field Supervisor Jose Garcia painted the cushions on November 1, 2023. The workers temporarily moved the barricades for work, but they remained after painting. (Garcia Depo 19:16-23, 20:25-21:13.) Garcia confirmed both cones and white tabs in front of the cushions before painting began. (Id. at 19:5 – 21:4.) The crew removed the glued down white tabs before painting. (Id. at 23:6-24:14.) Crew leader Sigfredo Alvarez confirmed the warning signs and cones left at the site when the work completed on October 27, 2023. (Alvarez Depo.)

Plaintiff describes the incident as first riding up the hill, then turning around and proceeding down the hill. (Floria Depo. 20:11-20.) Plaintiff fell after hitting a “bump” during the descent. Plaintiff only recalls being “bounced up and down,” and denies any recall of warning signs, barricades, or traffic cones. (Id. at 47:2-48:25, 49:4-16, 54:4-55:14, 66:7-68:3.) Plaintiff traveled the same route up the hill, but recalls no presence of the cushions or other warning signs. (Id. at 51:24-52:1.) Plaintiff only figured out the speed bump was the cause of the fall upon revisiting the site weeks later. (Id. at 65:13-66:6, 72:1-7.) Plaintiff lacks any recall of other potential causes of the fall. (Id. at 71:20-25, 73:13-19, 74:3-11, 74:20-75:76:2, 100:11-14.) Plaintiff estimated his downhill speed between 18-20 miles per hour. (Id. at 49:7-16.)

## LEGAL STANDARD

The pleadings frame the issues for motions, “since it is those allegations to which the motion must respond. (Citation.)” (Scolinos v. Kolts (1995) 37 Cal. App. 4th 635, 640-641; FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 382-383; Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp. (1994) 29 Cal.App.4th 1459, 1472.) The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established.” (Code Civ. Proc., § 437c, subd. (p)(2).) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.)

“A party may move for summary adjudication as to one or more causes of action within an action... or one or more issues of duty if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inference that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; see also Code Civ. Proc., § 437c, subd. (c).) “An issue of fact can only be created by a conflict in the evidence. It is not created by speculation, conjecture, imagination or guesswork.” (Lyons v. Security Pacific National Bank (1995) 40 Cal.App.4th 1001, 1014 (citation omitted).)

## DISCUSSION

## Moving Party's Argument

Defendant Los Angeles County (County) challenges the action on grounds of a failure to present a statutory basis of recovery, the speed cushions in no way constitute a dangerous condition by any statutory definition, County qualifies for immunity under any theory of a failure to warn of a dangerous condition, county denies causation, and denial of any actual or constructive notice of any alleged dangerous condition.

## Opposing Party's Argument

Plaintiff Keith Floria (Floria) maintains that all claims rely on the same facts. To the extent the court finds any causes of action or counts withing the premises liability cause of action insufficient, Floria requests leave to amend the complaint. Plaintiff requests this potential relief due to County never previously presenting any challenge to the pleading and instead only proceeding to summary judgment and summary adjudication.

The allegations of willful failure to warn are valid. Triable issues of material fact exist regarding whether a dangerous condition of public property existed.

Plaintiff challenges the representation that traversing a speed cushion constitutes a safe movement as "pure speculation." Plaintiff asserts that the speed cushions created a "trap" and that triable issues of material fact exist as to causation and notice of the dangerous condition.

## Reply Argument

In Reply, the County argues that Plaintiff concedes the dispositive law on the first three issues. The County reiterates that the speed cushions did not constitute a dangerous condition and that, even if the court finds that there was a dangerous condition, there is no evidence that the County had evidence of such condition.

Finally, the County argues that Plaintiff has not and cannot show evidence of causation.

## Summary Adjudication Notice

The motion for summary adjudication identifies six issues. The first three assert that a public entity cannot be liable except as provided by statute. The next three issues presume that the Plaintiff is proceeding under Government Code section 830 and 835. The fourth question for adjudication is whether the speed cushions were a dangerous condition as a matter of law. The fifth question for adjudication is whether there is evidence of causation. The final question for adjudication is whether, assuming that the speed cushions presented a dangerous condition, the County was on actual or constructive notice of that condition prior to Plaintiff's injury.

While the Complaint is not precise, the court construes it to allege three causes of action: 1) Common Law Negligence; 2) Common Law Premises Liability; and 3) Dangerous Condition of Public Property.

## Merits of the Motion

### A. Plaintiff's Common Law Causes of Action Fail as a Matter of Law

"The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury." (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158.) "In order to prevail in an action based upon a defendant's alleged negligence, a plaintiff must demonstrate that the defendant owed the plaintiff a legal duty, that the defendant breached the duty, and that the breach was a proximate or legal cause of his or her injuries." (Morris v. De La Torre (2005) 36 Cal.4th 260, 264.)

California Government Code section 815 provides that "[a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person" except as provided by statute. (Govt. Code, § 815(a); Eastburn v. Regional Fire Protection Authority (2003) 31 Cal.4th 1175, 1183.) "[D]irect tort liability of public entities must be based on a specific statute declaring them to be liable, or at least creating some specific duty of care, and not on the general tort provisions of Civil Code section 1714. Otherwise, the general rule of immunity for public entities would be largely eroded by the routine application of general tort principles." (Eastburn v. Regional Fire Protection Authority (2003) 31 Cal.4th 1175, 1183.) "The sole statutory basis for imposing liability on public entities as property owners is Government Code section 835." (Cerna v. City of Oakland (2008) 161 Cal.App.4th 1340, 1347.)

As Plaintiff's causes of action of "negligence" and "premises liability" allege common law negligence claims and Defendant is a public entity, those claims fail as a matter of law. Therefore, summary adjudication to the first three issues raised by Defendant is GRANTED.

#### B. Dangerous Condition Under Section 835

Government Code Section 835 states: "Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and either:

(a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or

(b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition."

The term "dangerous condition" means a "condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used." (Gov. Code Section 830(a).) "A condition is not dangerous within the meaning of the statute 'unless it creates a hazard to those who foreseeably will use the property . . . with due care. Thus, even though it is foreseeable that persons may use public property without due care, a public entity may not be held liable for failing to take precautions to protect such persons.'" (Matthews v. City of Cerritos (1992) 2 Cal.App.4th 1380, 1384.) "The condition of the property involved should create a 'substantial risk' of injury, for an undue burden would be placed upon public entities if they were responsible for the repair of all conditions creating any possibility of injury however remote that possibility might be." (Fredette v. City of Long Beach (1986) 187 Cal.App.3d 122, 130, fn. 5.) "The existence of a dangerous condition ordinarily is a question of fact, but the issue may be resolved as a matter of law if reasonable minds can come to only one conclusion." (Peterson v. San Francisco Comm. College Dist. (1984) 36 Cal.3d 799, 810.)

When a court determines whether a condition is trivial as a matter of law, "[t]he legal analysis involves several steps. First, the court reviews evidence regarding the type and size of the defect. If that preliminary analysis reveals a trivial defect, the court considers evidence of any additional factors such as the weather, lighting and visibility conditions at the time of the accident, the existence of debris or obstructions, and plaintiff's knowledge of the area. If these additional factors do not indicate the defect was sufficiently dangerous to a reasonably careful person, the court should deem the defect trivial as a matter of law. . ." (Stathoulis v. City of Montebello (2008) 164 Cal.App.4th 559, 567-568.)

In this case, the County admits to the existence of the speed cushions, and additionally represents the speed cushions were marked with white reflective tabs while traffic cones and barricades were also placed in the area. The County also concedes that those white tabs and barricades were necessary as the newly installed speed cushions could not be immediately painted.

Therefore, the alleged dangerous condition was one or more “speed cushions” (akin to speed bumps) installed on a public roadway. Those speed cushions were marked by reflective tabs, signs, and traffic cones. The court finds that this evidence is sufficient to show that there was no dangerous condition as a matter of law. Therefore, the burden shifts to Plaintiff to show that there is a material fact in dispute as to the dangerousness of the condition.

In opposition, Plaintiff presents the testimony of Sandra Thomas, who was apparently the first person to come upon Plaintiff after he fell. Thomas testified that she did not see the accident and did not know whether Plaintiff hit a speed cushion. (Thomas Depo. 23:19-21.) Thomas testified that she did not remember seeing any barricades on the street that day, although there had been construction signage earlier. She was unable to testify as to a precise location of where she found Plaintiff in the roadway, and was not asked where he was in proximity to the speed cushions. Indeed, Thomas gave no testimony about the speed cushions at all.

Plaintiff testified that he fell from his bicycle after hitting a “bump.” After his fall, he had no memory of the event. He testified multiple times that he did not know what his bicycle hit, that he saw nothing in the roadway, and that he did not remember anything about event other than feeling a big bump.

The court finds that this evidence is sufficient to carry Plaintiff’s burden of proof to show that the unpainted speed cushions were a dangerous condition at the time of Plaintiff’s injury.

#### C. Design Immunity Under Government Code section 830.6

Government Code section 830.6 provides immunity to a public entity for injuries caused by improvements to public property which were installed pursuant to an approved plan. To obtain immunity, the public entity must establish three elements: (1) a causal relationship between a plan or design and the accident; (2) discretionary approval of the plan or design prior to construction; and (3) substantial evidence supporting the reasonableness of the plan or design.

(Tansavatdi v. City of Rancho Palos Verdes (2021) 60 Cal.App.5th 423, 434.)

Here, the court has reviewed the “Traffic Engineering Report” attached as “Exhibit B” to the Bowie deposition. The report shows that the County performed a traffic study, analyzed collision data, and conducted a field review of the roadway. The County further examined the County’s current guidelines, recommended that speed cushions be installed, and obtained signatures from 75% of the residents on the effected street.

For this analysis, the court presumes that the speed cushion was the “bump” experienced by Plaintiff, and that it caused Plaintiff to fall. The court finds that the Traffic Engineering Report provides evidence of discretionary approval of the installation of speed humps prior to their installation. Finally, the court finds that the substance of the report (including various surveys of the roadway, including traffic studies) supports the reasonableness of the plan or design. Therefore, the Defendant has met its burden to show that it is entitled to Design Immunity under section 830.6 and the burden shifts to Plaintiff to rebut Defendant’s evidence.

In opposition, Plaintiff argues that the design of the speed cushions required paint and that without permanent paint, the speed cushions were not completed as designed and therefore, immunity under Section 830.6 does not attach. In support of this argument, Plaintiff provides Exhibit Z to the deposition of Alvarez. The maps attached to that exhibit clearly require that paint markings be placed on the roadway to complete the project as designed.

It is undisputed that the design of the speed cushions required permanent signs and paint to comply with the design and that those attributes of the design were not in place until after Plaintiff fell. Therefore, the speed cushions were not in conformity with the discretionary design and the County is not entitled to design immunity under Section 830.6.

#### D. Signage Immunity Under Government Code section 830.8

"Neither a public entity nor a public employee is liable under this chapter for an injury caused by the failure to provide traffic or warning signals, signs, markings or devices described in the Vehicle Code. Nothing in this section exonerates a public entity or public employee from liability for injury proximately caused by such failure if a signal, sign, marking or ... was necessary to warn of a dangerous condition which endangered the safe movement of traffic and which would not be reasonably apparent to, and would not have been anticipated by, a person exercising due care." (Gov't Code § 830.8.)

Section 835 sections (a) and (b) provide for two alternative theories of liability: "(1) The state [could be] liable under subdivision (a) of section 835, for it had created a dangerous condition...; and (2) the state [could be] liable under subdivision (b) of section 835, for it had knowledge of a dangerously...condition (not reasonably apparent to a careful driver) and failed to protect against the danger by posting a warning... The first theory assert[s] causation in the state's active negligence in creating a danger, the second in the state's passive negligence in failing to warn of it." (*Tansavatdi v. City of Rancho Palos Verdes* (2023) 14 Cal.5th 639, 655.) Therefore, even if the state is immune from liability for designing the dangerous condition, it "may nevertheless be liable for failure to warn of this dangerous condition where the failure to warn is negligent and is an independent, separate, concurring cause of the accident." (*Id.* at 657.)

However, "such claims may be subject to a separate, more limited form of statutory immunity: Signage immunity set forth in section 830.8." (*Id.* at 660.) "That provision precludes government liability for failing to provide 'traffic or warning signals' (§ 830.8), except when necessary to warn of a dangerous condition which would not be reasonably apparent to, and would not have been anticipated by, a person using the highway with due care ... this exception to signage immunity is known as the 'concealed trap' exception." (*Id.* (internal citations omitted).)

Therefore, a plaintiff may make a claim for failure to warn of a dangerous traffic condition that is subject to design immunity. However, such a plaintiff "must nonetheless prove various elements that are not present when pursuing a claim alleging a public entity created that dangerous condition: (1) the public entity had actual or constructive notice that the approved design resulted in a dangerous condition...; (2) the dangerous condition qualified as a concealed trap, i.e., "would not have been reasonably apparent to, and would not have been anticipated by, a person exercising due care" (§ 830.8); and (3) the absence of a warning was a substantial factor in bringing about the injury." (*Id.* at 661-662.)

Here, the County caused speed cushions to be installed on the roadway prior to Plaintiff's injury. Although the speed cushions needed paint to warn users of their presence, no permanent paint was immediately installed. The court finds that there is sufficient evidence to support a finding that the unmarked speed cushions constituted a concealed trap, in that they would not have been readily apparent to a driver using due care without permanent paint. However, the County has provided evidence that it installed reflective tabs on the edges of the speed cushions as well as barriers and cones adjacent to the speed cushions in order to provide warning to drivers.

Therefore, the County has shown that it did install signage to alert drivers to the presence of newly installed speed cushions. (See *Stufkosky v. California Dep't of Transportation* (2023) 97 Cal. App. 5th 492, 501.) The immunities provided in Section 830.6 and 830.8 are designed precisely to "avoid the dangers involved in permitting reexamination and second-guessing of governmental design decisions in the context of a trial." (*Hampton v. County of San Diego* (2015) 62 Cal.4th 340, 349.) The court finds that, presuming the speed cushions constitutes "concealed trap," the County has shown it is entitled to immunity for posting signs and warnings which give notice of those cushions to roadway users travelling on the roadway as a matter of law.

Therefore, the Defendant has met its burden to show that it is entitled to Signage Immunity under section 830.8 and the burden shifts to Plaintiff to rebut Defendant's evidence.

In opposition, Plaintiff presents portions of the depositions of Defendant's employees as well as Thomas. Contrary to Plaintiff's arguments, each of Defendant's employees independently testified that there were various temporary warnings put in place to give notice of the new speed cushions to motorists. While both Thomas and Plaintiff testified that they did not see any evidence of barricades or warnings, neither gave competent evidence that those warnings were not in place. Crucially, neither witness was able to testify to any aspect of the speed cushions. Thomas was not asked and Plaintiff admitted he never saw what his bicycle struck. There is no evidence at all that Plaintiff was even in the vicinity of the speed cushions at the time the collision occurred. Therefore, Plaintiff has provided no evidence to overcome Defendant's evidence that the County had installed layers of warnings to give notice to motorists of the new speed cushions.

Because the evidence is uncontradicted that the County did install signage to warn of the unpainted speed cushions, the County is entitled to signage immunity under Section 830.8.

#### E. There is no Evidence of Causation

Finally, the County also argues that Plaintiff has shown no evidence that the injuries were caused by the speed cushions, even if they were in a dangerous condition. In support of this argument, Defendant points out that Plaintiff had ascended the same roadway (with the speed cushions in place) moments before he descended the same way. Defendant points out that Plaintiff cannot testify that his bicycle struck a speed cushion, as opposed to something else in the roadway. (UMF 17, 18.) There were no witnesses to the fall. (UMF 20.) Plaintiff testified that he "figured out" that the speed cushions must have caused his fall when he returned to the roadway several weeks later. (UMF 22.)

The court finds that this is sufficient to shift the burden to the Plaintiff to show that the speed cushions caused his injuries.

In opposition, Plaintiff relies on the testimony of Thomas. As noted above, Thomas gave no testimony about speed cushions or Plaintiff's proximity to them when she found Plaintiff on the ground. Therefore, there is no evidence to support Plaintiff's contention that it was the speed cushions that he impacted and that caused his fall.

#### CONCLUSION

Taken together, there is evidence to suggest that the unpainted speed cushions constituted a concealed trap which could cause a motorist using due care not to see the raised asphalt. Notwithstanding that determination, the County is entitled to summary judgment because it installed temporary warnings to give notice to road users of the changed traffic pattern. By implementing those temporary measures, the County is entitled to signage immunity under Section 830.8.

In the alternative, the County has shown an absence of causation. Because there is no evidence other than speculation by Plaintiff and argument of counsel that Plaintiff's bicycle actually impacted a speed cushion, the County is entitled to summary judgment on that alternative ground.

Based on the foregoing, Moving Defendant's Motion for Summary Judgment is GRANTED.

Moving party is ordered to give notice of ruling.